

4	<i>Lutton – Probate (2019-01048544)</i>	Motion to Be Relieved VZ Law, LLP’s motion to be relieved as counsel for Jeffrey S. Moorad (ROA 454) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.
5	<i>Donaldson – Probate (2023-01323260)</i>	Motion for Leave to Amend; Motions to Compel (2) Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson’s Responses to Inspection Demand, Set Four (ROA 258) is GRANTED. Eric Donaldson is ORDERED to provide verified written responses, without objection, to the inspection demand and to produce all documents responsive to each of the requests within 30 days of this order. Petitioner’s accompanying request for sanctions in connection with the motion is GRANTED in the amount of \$1,547.50 (2.5 hours at \$595 per hour plus the \$60 motion fee). Petitioner Darla Merritt’s unopposed Motion for Leave to File a Second Amended Will Contest and Objection to

	Petition for Probate (ROA 291) is GRANTED. “The policy favoring amendments is so strong that it is a rare case in which denial of leave to amend can be justified.” (<i>City of Torrance v. Southern California Edison Company</i> (2021) 61 Cal.App.5th 1071, 1091; see <i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”]. Petitioner is ORDERED to file and serve the proposed Second Amended Will Contest, attached to the motion as Exhibit 1, within 15 days of this order. Petitioner Darla Merritt’s unopposed Motion for an Order Compelling Eric Donaldson to Appear for Deposition and Produce Documents, etc. (ROA 287) is GRANTED. Eric Donaldson is ORDERED to appear for deposition and produce all responsive documents on a date and time convenient to the parties and their counsel, but in no event later than October 7, 2026. Petitioner’s accompanying request for sanctions in connection with the motion is GRANTED in the amount of \$5,470 (6 hours for motion and travel time at \$595 per hour,
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		a \$60 motion fee, and \$1,840 in associated costs). Petitioner is directed to give notice.
6	Coxe – Trust (2024-01371243)	Motion for Fees The Motion of Former Counsel for Approval and Payment of Attorney’s Fees and Costs from Trust Assets (ROA 191) is DENIED. Moving party The Fox Firm asks the court to approve and direct payment of attorney fees and costs from the Frank Sidney Coxe Trust (Trust) for work allegedly incurred in connection with administration of the Trust including representation of Sophie Vilks-Coxe, former trustee of the Trust, in this proceeding. The motion is made pursuant to Probate Code sections 15684, 16240, 16247, 17200, and 17206. However, none of those sections give this court the power to award interim fees directly to the moving party. At most, the sections give the court power to award attorney fees if requested by a trustee. Section 15684 states: “a trustee is entitled to repayment out of the trust property for . . . [e]xpenditures that were properly incurred in the administration of the trust.” (Emphasis added.)